

1 ENGROSSED HOUSE
2 BILL NO. 1322

By: Ford and Hefner of the
House

3 and

4 Gillespie of the Senate
5
6

7 An Act relating to domestic abuse; creating the
8 Domestic Violence Offenders Registration Act;
9 defining terms; directing the Oklahoma State Bureau
10 of Investigation to create and maintain a domestic
11 violence offenders registry; allowing for public
12 access to registry; listing information for inclusion
13 on the registry; requiring registrants to pay
14 registration fee; establishing fee amount; allowing
15 district court clerks to retain portion of fee;
16 directing district court clerks to remit portion of
17 fee to the Bureau; providing for the removal of
18 registrants under certain circumstances; prohibiting
19 causes of action for damages; making registration
20 requirements applicable on certain date; directing
21 the Bureau to promulgate policies and procedures;
22 amending 74 O.S. 2021, Section 150.12B, which relates
23 to domestic abuse reports; clarifying procedures and
24 requirements for submitting reports of domestic
abuse; providing restrictions on disseminated data;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 150.40 of Title 74, unless there
is created a duplication in numbering, reads as follows:

1 This act shall be known and may be cited as the "Domestic
2 Violence Offenders Registration Act".

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 150.41 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 As used in this act:

7 1. "Convicted" and "conviction" mean a final adjudication of
8 guilt, whether pursuant to a plea of guilty or nolo contendere or
9 otherwise, and any deferred judgment or suspended sentence; and

10 2. "Domestic violence" means the commission of any of the
11 offenses provided for in Sections 644 and 644.1 of Title 21 of the
12 Oklahoma Statutes that meet the definition of domestic abuse, as
13 defined in Section 60.1 of Title 22 of the Oklahoma Statutes.

14 SECTION 3. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 150.42 of Title 74, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The Oklahoma State Bureau of Investigation shall create a
18 registry of domestic violence offenders.

19 B. Beginning January 1, 2028, the Bureau shall maintain the
20 domestic violence offenders registry based upon information reported
21 to the Bureau in accordance with Section 150.12 of Title 74 of the
22 Oklahoma Statutes. The Bureau shall make the registry available for
23 public inquiry on the Internet. All information contained in the
24

1 registry, as provided in subsection C of this section, shall be
2 available to the public.

3 C. Upon notification that an individual has been convicted of a
4 domestic violence offense, as provided in Sections 644 and 644.1 of
5 Title 21 of the Oklahoma Statutes, the Bureau shall list the
6 individual on the domestic violence offenders registry. The
7 domestic violence offenders registry shall contain the following
8 information, as applicable, for each domestic violence offender:

- 9 1. Name;
- 10 2. Date of birth;
- 11 3. Plea and conviction type;
- 12 4. Conviction offense;
- 13 5. Disposition or conviction date;
- 14 6. County or counties of conviction; and
- 15 7. The most recent booking photograph of the person available
16 in the Automated Fingerprint Identification System (AFIS).

17 D. In addition to any punishment imposed for a conviction of a
18 domestic violence offense, a defendant required to register under
19 the provisions of this act shall be assessed a registration fee in
20 the amount of One Hundred Fifty Dollars (\$150.00), which shall be
21 paid to the clerk of the district court imposing the sentence, who
22 shall:

23
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1 1. Retain Fifty Dollars (\$50.00) of the one-hundred-fifty-
2 dollar fee to cover administrative costs, which shall be deposited
3 in the Court Clerk's Revolving Fund; and

4 2. Remit One Hundred Dollars (\$100.00) of the one-hundred-
5 fifty-dollar fee to the Bureau for administering the registry, which
6 shall be deposited in the OSBI Revolving Fund.

7 E. The Bureau shall remove from the domestic violence offenders
8 registry the name and other identifying information of a domestic
9 violence offender five (5) years after the completion of the last
10 sentence. Completion of the sentence shall be calculated by the
11 Bureau based on the sentence length and date of disposition or
12 conviction provided to the Bureau.

13 F. An individual does not have a cause of action for damages as
14 a result of being listed on the registry, and an individual does not
15 have a cause of action for damages in the event a domestic violence
16 offender is not listed in the registry in accordance with the
17 provisions of this act.

18 G. The provisions of this act only apply to persons convicted
19 of a domestic violence offense on or after January 1, 2028.

20 H. The Bureau shall promulgate policies and procedures to
21 implement and administer the provisions of this act.

22 SECTION 4. AMENDATORY 74 O.S. 2021, Section 150.12B, is
23 amended to read as follows:
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1 Section 150.12B. A. The Director of the Oklahoma State Bureau
2 of Investigation shall ~~provide forms~~ prescribe the format for the
3 reporting of domestic abuse ~~to each person~~ for all state, county,
4 city, and town law enforcement agencies required to submit such
5 reports pursuant to the provisions of ~~Section 3 of this act~~ the
6 Domestic Abuse Reporting Act and shall establish guidelines for the
7 collection and reporting of domestic abuse incident information
8 pursuant to the provisions of the Domestic Abuse Reporting Act and
9 consistent with the provisions of Section 150.10 of this title.

10 B. The Director of the Oklahoma State Bureau of Investigation
11 shall ~~compile a monthly and annual statistical report which shall~~
12 ~~include~~ maintain data collected regarding the number of reported
13 incidents of domestic abuse for each law enforcement agency, county,
14 and for the state as a whole, the types of crime involved in the
15 domestic abuse, and the days of the week the incidents occurred, ~~and~~
16 ~~the hours of the day the incidents occurred. The statistical~~
17 ~~reports shall not include the names of any of the persons involved~~
18 ~~in an incident of domestic abuse or any information which would~~
19 ~~serve to identify such persons as individuals.~~

20 C. ~~Copies of the monthly and annual statistical reports~~ Data
21 shall be available to the public upon request. Data disseminated
22 shall not include the names of any victim or suspect involved in an
23 incident of domestic abuse or any information which would serve to
24 identify such individuals.

SECTION 5. This act shall become effective January 1, 2028.

Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate